

## Question :

Our site is in Hillsboro, Oregon. We store drums of solvent outdoors on an uncovered pad, exposed to rain. Do we need a stormwater permit? And what about spill containment for the same pad?

### ChatGPT ( No log in, no background. Just asked on the web app)

Yes—**potentially**, and the uncovered solvent-drum pad is a significant factor. The answer turns on your facility's **industrial activity/SIC code, where the stormwater goes, and whether the solvents are exposed to precipitation.**

#### **1. Stormwater permit**

Oregon DEQ's current **1200-Z Industrial Stormwater General Permit** took effect July 1, 2026. It regulates stormwater discharges from covered industrial activities to waters of the state.

Importantly, **having solvent drums outdoors does not by itself automatically mean you need a 1200-Z permit.** The facility has to fall within one of the industrial categories covered by the permit. If it does, outdoor storage/handling of solvents can make the activity subject to stormwater requirements.

For example, DEQ's sector requirements can specifically address containerized materials such as solvents and require them to be protected from stormwater exposure.

There is another wrinkle for Hillsboro: if the pad drains to an **underground injection control (UIC) system/drywell**, Oregon has separate requirements for industrial/commercial facilities handling hazardous substances. DEQ requires those facilities to prevent stormwater from being exposed to hazardous substances before it enters the UIC system.

#### **2. Spill containment**

If your facility is subject to the 1200-Z permit, **secondary containment is generally the expectation for hazardous substances/chemical liquids exposed to stormwater.** DEQ's stormwater requirements call for hazardous substances and chemical liquids with potential to contaminate stormwater to be stored within berms or other secondary containment; where that isn't practicable, they must be kept in areas that don't drain off-site or to the storm sewer.

So, for an **uncovered pad holding solvent drums**, I would not treat an ordinary paved pad with a storm drain as adequate spill containment. A typical compliant approach would be something like:

- impervious pad;
- curbing/berm or a containment pallet/system;
- enough capacity for the applicable spill plus **rainfall/freeboard**;
- no uncontrolled connection to a storm drain;

- controlled removal of accumulated rainwater;
- inspection for leaks and deterioration;
- spill-response materials and procedures; and
- protection against vehicle impacts and drum damage.

DEQ's industrial stormwater guidance specifically recommends keeping drums/containers containing significant materials or hazardous substances away from drainage pathways and surface waters.

### 3. There may also be fire-code requirements

If these are **flammable solvents**, Oregon OSHA's flammable-liquid rules can independently require the storage area to be graded to divert spills or surrounded by a curb, with drainage arranged so spills don't create a hazard.

Oregon's State Fire Marshal also regulates/reporting certain quantities of hazardous substances under the Community Right to Know program.

### What I would need to give you a fairly definitive answer

If you give me these **four facts**, I can work through the Oregon requirements for your specific Hillsboro site:

1. **What does the facility manufacture/process?** (or your SIC code, if you know it)
2. Are these **virgin solvent drums, used/spent solvent, or both?**
3. Approximately **how many gallons** are stored on the pad?
4. Where does the pad's rainwater go—**storm drain, ditch/creek, UIC/drywell, sanitary sewer, or does it infiltrate on-site?**

Those details determine whether you're looking at **1200-Z coverage, UIC requirements, hazardous-waste requirements, fire-code containment, or several of them simultaneously.**

## Gemini:

Stormwater Permit Requirements in Hillsboro, Oregon

If you store drums of solvent outdoors on an uncovered pad exposed to rain, **yes, you will very likely need an industrial stormwater permit.**

- **The Oregon DEQ 1200-Z Permit:** The Oregon Department of Environmental Quality (DEQ) regulates stormwater runoff from industrial sites under the **1200-Z General NPDES Permit.**

- **No "No Exposure" Exclusion:** Because your solvent drums are outdoors and exposed to precipitation, your site does not qualify for a "No Exposure" exclusion. If stormwater from your facility flows off the pad and into surface waters, ditches, or municipal storm sewer systems (managed locally in Hillsboro via Clean Water Services infrastructure), permit coverage is mandatory.
- **High Pollution Risk:** Uncovered solvent storage is a major red flag for stormwater inspections. Rainwater washing over the pad can pick up chemical residue or minor drips, creating a high risk of benchmark exceedances and heavy penalties.

#### Spill Containment and Secondary Containment Rules

Storing hazardous liquids like solvents outdoors on an unroofed pad also triggers strict secondary containment requirements under federal and state environmental laws.

- **Volume Sizing:** Your secondary containment system must be capable of holding the greater of **110% of the volume of your largest drum** or **10% of the total aggregate volume** of all containers on the pad.
- **The Rainwater Problem:** Because your pad is **uncovered**, your containment structure will fill up with rainwater.
  - You must design the containment to hold both the required spill volume *plus* the heavy runoff volume generated by a major design storm (such as a 24-hour, 25-year storm event), or use physical berms to prevent outside run-on.
  - **Water Disposal:** Accumulated rainwater inside a solvent containment basin is considered potentially contaminated industrial wastewater. You **cannot** drain it

into a storm sewer. It must be tested, managed, and hauled off-site for proper disposal unless explicitly permitted otherwise.

## Recommended Best Practices

To drastically reduce your compliance burden, lower your risk of spills, and avoid expensive wastewater management fees, consider these solutions:

- **Build a Roof or Canopy:** Installing a structural roof or heavy-duty cover over the pad—along with perimeter curbing to block stormwater run-on—prevents rain from ever touching the drums.
- **Relocate Indoors:** Moving your solvent inventory inside a warehouse or a dedicated chemical storage locker is the safest and most compliant option.
- **Coordinate Locally:** Contact **Clean Water Services (CWS)** (the water resource management district for Washington County/Hillsboro) or an environmental consultant to verify your specific SIC code requirements and site drainage setup.

Would you like help outlining a Stormwater Pollution Control Plan (SWPCP) for your facility?

## Claude ( No background given)

Short answer: yes to both, almost certainly, given what you've described.

### **Stormwater — 1200-Z permit**

Oregon regulates this through DEQ's 1200-Z Industrial Stormwater Discharge General Permit, and the trigger isn't complicated: if your industrial activity area is exposed to precipitation and that stormwater discharges — even indirectly through a ditch, storm drain, or sheet flow — to a water of the state, you need coverage. The classic example DEQ itself uses is materials stored outside where rain falls on the storage area and washes into the stormwater system — that's exactly your drum pad. [City of Estacada](#)

The one escape hatch is a "No Exposure Certification" — but that only applies when industrial materials and activities are *not* exposed to stormwater (i.e., everything's under a roof or otherwise shielded). Since you're describing an uncovered pad with drums sitting directly in the rain, that exemption isn't available to you. You're in coverage-required territory, not exemption territory.

Whether solvent storage/distribution specifically falls under a covered sector depends on your SIC code and activity classification under the permit's Table 1/2 — coverage applies when stormwater is associated with an industrial activity identified in those tables, or when DEQ notifies a facility it needs coverage. Chemical storage and distribution operations are typically captured. Practically, the move is to register in Your DEQ Online, get your site's Standard Industrial Classification confirmed, and if covered, develop a Stormwater Pollution Control Plan (SWPCP) — that's the document where the pad, the drums, and your containment measures all get described and where DEQ will look first if there's ever a spill or an inspection. [Oregon Department of Environmental Quality](#)

One more thing worth flagging: DEQ just reissued 1200-Z effective July 1, 2026, replacing the 2021 version, so if anyone on your team was working off old guidance, get the current permit text rather than an older PDF.

### **Spill containment for the same pad**

This is a separate obligation from the stormwater permit, and it's driven by fire code, not DEQ. Hillsboro enforces the Oregon Fire Code (based on the International Fire Code), and outdoor storage of hazardous materials — solvents almost always qualify — requires secondary containment. The standard the fire marshal will hold you to is containment sized for 110% of the largest single container, or enough volume to hold the contents of the largest drum plus a safety margin, with the containment area also needing a way to shed clean rainwater without it becoming a pathway for spilled product to reach the storm drain (usually a manually-operated valve or absorbent-sock drain, not a passive open drain).

Two more layers to check:

If any of what's in those drums is petroleum-based and your aggregate aboveground storage exceeds 1,320 gallons, you're also into SPCC (Spill Prevention, Control and Countermeasure) territory under EPA's 40 CFR 112 — that requires a written SPCC plan, not just physical containment.

And if any of the material is hazardous waste rather than virgin product, RCRA secondary containment rules (40 CFR 264/265 Subpart I) kick in with their own specs on containment system design, including things like a minimum containment capacity and compatibility of the containment liner with what's stored.

Practical sequencing: get the pad physically compliant first (curbing or berm sized to the 110% rule, with a controlled drain), because that containment design is also exactly what you'll describe in the SWPCP for the stormwater permit — the two requirements reinforce each other rather than being independent paperwork exercises. I'd loop in Hillsboro Fire & Rescue's hazmat

inspector directly since local fire code enforcement varies by jurisdiction in exact numbers and drain valve requirements, and DEQ's regional NW office for the 1200-Z application specifics.

## [CompliBoard:](#)

### **STORMWATER PERMIT & SPILL CONTAINMENT FOR OUTDOOR SOLVENT STORAGE IN HILLSBORO, OREGON**

#### **WHAT THIS MEANS FOR YOU**

**Yes, you almost certainly need a stormwater permit.** In Oregon, industrial facilities that have stormwater runoff exposed to industrial materials must obtain coverage under the **1200-Z General Permit** (Industrial Stormwater). Storing drums of solvent outdoors where rain can contact them, or where spills could be washed away by rain, is exactly the kind of activity this permit regulates.

**And yes, you need spill containment.** Oregon's rules require secondary containment for outdoor chemical storage. This means you can't just keep drums sitting on an open pad — you need something to catch spills and leaks before they reach stormwater drains or the ground.

#### **WHO IT APPLIES TO**

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**Any industrial facility in Oregon** with outdoor activities or materials exposed to stormwater

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**Specifically applies to you** because solvents are industrial materials, and you're storing them uncovered where rain hits them

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The permit requirement isn't based on company size or number of drums — if you're doing this activity, you need the permit

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Hillsboro is in the Portland metro area, so you're also in the **DEQ's Northwest Region** jurisdiction

## THE KEY FACTS

### ### Stormwater Permit (1200-Z)

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Issued by the **Oregon Department of Environmental Quality (DEQ)**

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Requires you to submit a **Notice of Intent (NOI)** before you can legally operate

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You must develop a **Stormwater Pollution Control Plan (SWPCP)** that identifies:

- Where stormwater contacts industrial materials
- What pollutants could get into runoff
- What controls you'll use to prevent contamination
- How you'll inspect and maintain those controls

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You must conduct **visual monitoring** of your stormwater discharge regularly

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**Annual reporting** is required

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Permit fee: approximately \$565/year (subject to change)

### ### Spill Containment Requirements

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Oregon requires **secondary containment** for hazardous substance storage

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For drums on a pad, this typically means:

- A **spill pallet or berm** that holds at least 110% of the largest container's volume
- Or a **concrete containment pad** with curbs/walls and a drain valve
- The containment must be **impervious** (won't leak into soil)

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Any captured stormwater in your containment must be:

- **Inspected** before release
- **Treated as hazardous waste** if contaminated
- Possibly tested, depending on the solvent type

### ### What You Need to Do Right Now

1. **Stop storing drums uncovered immediately** — get temporary containment in place (tarps are a short-term fix only)
2. **File for your 1200-Z permit** — submit an NOI to DEQ
3. **Install proper secondary containment** — spill pallets or a bermed pad
4. **Create your SWPCP** — this is your operating manual for stormwater management
5. **Train your employees** on spill response and stormwater protection

### COMMON MISCONCEPTIONS

**"We only have a few drums, so we don't need a permit."**

Wrong. There's no minimum threshold based on quantity. If you're an industrial facility with outdoor exposure, you need the permit.

### **"We'll just cover the drums with a tarp."**

Not good enough for compliance. You still need secondary containment beneath them in case of leaks or spills. A tarp also doesn't qualify as proper coverage under the permit — you'd need a permanent roof or enclosed structure.

### **"Rainwater that falls on the pad is clean until a spill happens."**

No. Even small drips, residue on drum lids, or vapors can contaminate stormwater. DEQ assumes any rain contacting your storage area is potentially polluted.

### **"We're too small for DEQ to care."**

Size doesn't matter. DEQ enforces these rules on small businesses regularly. Complaints from neighbors or downstream water sampling can trigger inspections.

### **"Spill containment is just an OSHA thing."**

It's both. OSHA cares about worker safety; DEQ cares about environmental contamination. You need containment to satisfy both agencies.

## **WHAT HAPPENS IF YOU IGNORE IT**

### **### Stormwater Permit Violations**

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**Civil penalties:** Up to \$25,000 per day per violation under Oregon law

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**Federal fines:** EPA can also enforce, with penalties up to \$59,973 per day (yes, per day)

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**Stop-work orders:** DEQ can shut down your outdoor operations until you're compliant

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**Mandatory corrective action:** You'll be ordered to fix the problem at your expense, often on a tight timeline

### ### Lack of Spill Containment

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**Immediate cleanup orders:** If a spill reaches soil or water, you pay for environmental remediation (often tens of thousands of dollars)

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**Hazardous waste liability:** You're responsible for contaminated soil removal and disposal

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**Third-party lawsuits:** If your runoff contaminates a neighbor's property or waterway, you can be sued

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**Criminal charges:** Knowing violations that endanger public health can result in criminal prosecution

### ### Real-World Consequences

Oregon DEQ actively patrols industrial areas and responds to complaints. In the Portland metro area (which includes Hillsboro), enforcement is particularly active. A single rainfall event that washes solvent residue into a storm drain can trigger a violation notice within days.

## USEFUL RESOURCES

### ### Oregon DEQ

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**1200-Z General Permit information:** <https://www.oregon.gov/deq/wq/wqpermits/Pages/NPDES-Stormwater-1200Z.aspx>

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**DEQ Northwest Region Office** (serves Hillsboro):  
700 NE Multnomah St., Suite 600, Portland, OR 97232

Phone: (503) 229-5696

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**File your Notice of Intent (NOI):** Available on the DEQ website above

### Spill Containment Guidance

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**DEQ Hazardous Waste Program:** <https://www.oregon.gov/deq/hazardouswaste>  
Phone: (503) 229-5913

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**EPA Secondary Containment Guidance:** Useful technical details on sizing and design

### Where to Buy Compliance Equipment

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Look for **spill pallets** rated for your solvent type (check chemical compatibility)

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Many industrial supply companies in the Portland area sell compliant containment systems

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Budget approximately \$100-\$500 per pallet depending on capacity

### Consultant Help

If this feels overwhelming, consider hiring an environmental consultant who specializes in Oregon stormwater permits. They can:

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Prepare your NOI and SWPCP

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Design your containment system

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Train your staff

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Typical cost: \$2,000-\$5,000 for initial setup

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